

THE LEGISLATIVE TRIAD

SHAPING THE FUTURE OF U.S. SPACE POLICY

*A Deep-Dive Policy Analysis of the Space Infrastructure Act (H.R. 1154),
the LAUNCH Act (H.R. 5602), and the New Space Age Act (H.R. 10320)*

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Prepared for: Space Policy Stakeholders, Federal Affairs Advisors, and Industry Executives
By Arsenal Government and Public Affairs

1. Overview: Three Bills, One Problem

The U.S. commercial space industry is regulated by a patchwork of statutes, executive orders, and agency authorities that were designed for an era of government-led spaceflight. The three bills analyzed in this report—the Space Infrastructure Act (H.R. 1154), the LAUNCH Act (H.R. 5602), and the New Space Age Act (H.R. 10320)—each attack a different facet of the same fundamental problem: the federal regulatory and institutional framework has not kept pace with the explosive growth of commercial space operations.

Together, they form what can be understood as a legislative triad. The Space Infrastructure Act addresses the protection question (how the government classifies and defends space systems). The LAUNCH Act addresses the licensing question (how efficiently the government processes launch and reentry approvals). The New Space Age Act addresses the institutional question (where within the executive branch commercial space oversight should live). Each bill has different sponsors, different politics, and different prospects—but they are deeply interconnected.

Dimension	Space Infrastructure Act (H.R. 1154)	LAUNCH Act (H.R. 5602)	New Space Age Act (H.R. 10320)
Bill Number / Congress	H.R. 1154, 119th Congress	H.R. 5602, 119th Congress	H.R. 10320, 118th Congress (expired; likely reintroduction)
Sponsor	Rep. Ken Calvert (R-CA-41)	Rep. Brian Babin (R-TX) & Rep. Zoe Lofgren (D-CA)	Rep. Kevin Kiley (R-CA)
Core Action	Designate space as 17th critical infrastructure sector under DHS	Evaluate and reform FAA Part 450 licensing; create digital licensing system; establish Commercial Space Transportation Administration	Move Office of Commercial Space Transportation (AST) from FAA to report directly to Secretary of Transportation
Primary Agency Affected	DHS / CISA	DOT / FAA	DOT / FAA
Status (Mar 2026)	Introduced Feb 2025; referred to committee; 18% GovTrack passage probability	Introduced 2025; active in House Science, Space, and Technology Committee	Introduced Dec 2024 in 118th Congress; expired; expected reintroduction in 119th
Industry Signal	Protection and resilience	Speed and predictability	Institutional elevation and independence

2. The Space Infrastructure Act (H.R. 1154)

2.1 Core Mandate and The Problem

The Space Infrastructure Act directs the Secretary of Homeland Security to designate space systems, services, and technology as a critical infrastructure sector—making it the 17th sector alongside existing designations such as energy, financial services, transportation, communications, and defense industrial base. Under current law (42 U.S.C. §5195c), “critical infrastructure” means systems and assets, whether physical or virtual, so vital to the United States that their incapacity or destruction would have a debilitating impact on security, national economic security, national public health or safety, or any combination thereof.

The Problem It’s Solving: Space systems—satellites, ground stations, launch infrastructure, digital command-and-control networks—underpin GPS navigation, financial transaction timing, weather forecasting, military communications, precision agriculture, and emergency services. Yet no single federal entity is tasked with coordinating the security and resilience of space systems as a holistic sector. The Cyberspace Solarium Commission 2.0 recommended this designation specifically because cyber threats to space systems (including state-sponsored attacks from China and Russia) are growing faster than the current cross-sector coordination framework can address.

Streamlining vs. Designating: This bill is a “designating” action, not a “streamlining” one. It changes the legal status of space systems, triggering a cascade of federal coordination obligations. DHS must issue guidance defining the sector’s scope, name a federal agency (likely CISA) as the Sector Risk Management Agency (SRMA), and add the space sector to the list of critical infrastructure sectors eligible for certain national security grant allocations.

2.2 The “Critical Infrastructure” Debate: What the 17th Sector Means

Designation as a critical infrastructure sector is not a regulatory mandate in itself—it is a framework designation that unlocks specific federal resources, information-sharing mechanisms, and coordination structures. Here is what would change:

What Gets Unlocked: DHS/CISA would establish a Space Systems Sector Coordinating Council (SCC) and Government Coordinating Council (GCC), creating formal public-private information-sharing channels. Space companies would gain eligibility for DHS critical infrastructure protection grants under the State Homeland Security Grant Program and Urban Area Security Initiative. CISA would provide threat briefings, vulnerability assessments, and incident response support specifically scoped to space systems. The sector would be included in National Infrastructure Protection Plan (NIPP) frameworks, risk assessments, and cross-sector dependency analyses.

Potential Downsides for Private Companies: The Heritage Foundation has argued this designation “puts form over substance” and risks diluting limited DHS resources across 17 sectors instead of 16, effectively making “everything a priority” which “means nothing is a priority.” Critics also warn that designation could lead to new cybersecurity compliance mandates—potentially including requirements analogous to CISA’s Cyber Incident Reporting for Critical Infrastructure Act (CIRCIA), which requires critical infrastructure entities to report significant cyber incidents within 72 hours. For commercial satellite operators, this could mean new reporting obligations, security audit requirements, and compliance costs. Additionally, the Heritage Foundation notes that space-related functions already exist within other designated sectors (communications, IT, transportation, defense

industrial base), and a standalone designation could “silo” support and hinder the cross-sector coordination that currently occurs.

The Counter-Argument: Proponents (including the bill’s bipartisan co-sponsors and the Cyberspace Solarium Commission 2.0) argue that the cross-sector approach has failed to produce adequate focus on space-specific threats. Without a dedicated sector designation, space security remains a secondary concern distributed across multiple SRMAs, none of which has space as its primary mission. The designation would force institutional focus.

2.3 Regulatory Power Shifts

This bill primarily empowers DHS/CISA. The key power shift is from the current distributed model (where DOD, DOT/FAA, Commerce/NOAA, and NASA each handle their own space system security within their authorities) to a model where CISA becomes the coordinating hub for civilian space infrastructure protection. DOD retains authority over military space systems, but commercial and civil space systems would gain a dedicated civilian protector. The Office of Space Commerce, which is being elevated under Executive Order 14335, could find itself in a coordination dynamic with CISA that does not currently exist.

2.4 Industry Friction Points

Cybersecurity mandate creep: The bill itself does not impose specific cybersecurity requirements, but designation as critical infrastructure is typically the precursor to sector-specific regulations. Space Policy Directive-5 (SPD-5, September 2020) established cybersecurity principles for space systems, but these are voluntary. Designation could accelerate the shift from voluntary to mandatory.

Definition scope ambiguity: The bill directs DHS to “define the scope of the sector.” This is where industry will fight hardest. Does “space systems” include ground-based antennas, user terminals, supply chain manufacturers, launch sites, cloud computing infrastructure used for mission operations, or only on-orbit assets? The scope definition will determine which companies face new compliance exposure.

Grant eligibility politics: Adding space to the DHS grant-eligible sectors list creates new competition for limited grant funds, potentially drawing resources away from other sectors without a corresponding appropriations increase.

2.5 Geopolitical Context

China’s demonstrated anti-satellite (ASAT) capabilities, Russia’s 2021 destructive ASAT test, and both nations’ documented cyber operations against space systems are the primary threat drivers behind this bill. The legislation is explicitly motivated by the need to protect systems that U.S. military and economic operations depend on—particularly as the PWSA constellation, GPS, and commercial broadband constellations become higher-value targets. The bill aligns with the broader Golden Dome framework by hardening the civilian space infrastructure that military space architectures depend upon.

2.6 Search-Worthy Rabbit Holes

PPD-21 (Presidential Policy Directive-21): The 2013 directive that defines the current 16 critical infrastructure sectors; any new sector must be reconciled with this framework. SPD-5 (Space Policy Directive-5): The Trump-era first-term directive establishing voluntary cybersecurity principles for space systems—would designation make these mandatory? Cyberspace Solarium Commission 2.0:

The bipartisan commission whose recommendation directly inspired this bill. CIRCIA (Cyber Incident Reporting for Critical Infrastructure Act): The 2022 law requiring critical infrastructure entities to report cyber incidents to CISA within 72 hours—would space operators be swept in? Space ISAC (Information Sharing and Analysis Center): The existing space-focused ISAC that would likely become the sector’s primary information-sharing hub. NIPP (National Infrastructure Protection Plan): The DHS framework for risk management across all critical infrastructure sectors. Viasat/KA-SAT incident (February 2022): The Russian cyberattack on Viasat’s KA-SAT network at the start of the Ukraine invasion—the real-world event that crystallized the space cybersecurity threat.

3. The LAUNCH Act (H.R. 5602)

3.1 Core Mandate and The Problem

The LAUNCH Act (Licensing Aerospace Units to New Commercial Heights Act) is the most operationally specific of the three bills. Its core mandate is to evaluate and reform the FAA's Part 450 launch and reentry licensing regulations, create a digital licensing system, establish transparency mechanisms for license processing times, authorize direct-hire authority for the Office of Commercial Space Transportation, and—most significantly—create a new “Commercial Space Transportation Administration” within the Department of Transportation.

The Problem It's Solving: Part 450, which took effect in 2021, was intended to streamline FAA licensing by replacing vehicle-specific legacy regulations (Parts 415, 417, 431, 435) with a single set of performance-based rules applicable to all vehicle types. In practice, the transition has been rocky. As of June 2025, the FAA had issued only eight licenses under Part 450 (and denied one), with two exceeding the statutory 180-day review timeline. SpaceX alone consumes approximately 80% of FAA AST overtime hours. Pre-application consultations—which do not count toward the 180-day clock—can extend for months or years. The incremental review process (Section 450.33), intended to allow phased submissions, has in some cases created multiple review cycles that extend total timelines. Industry complaints center on unpredictability, understaffing, and the fact that Part 450's performance-based approach requires more subjective judgment by FAA reviewers than the old prescriptive rules.

3.2 Key Provisions

Part 450 Evaluation (Sec. 2): Within 120 days, the Secretary of Transportation must evaluate whether Part 450 has increased uncertainty, caused operational delays, or changed review timelines—and report findings to Congress with recommendations that “do not rely solely on additional personnel or funding.” This framing is significant: it forces DOT to propose structural reforms, not just ask for more money.

Aerospace Rulemaking Committee (Sec. 2(b)): Mandates continuation of an ARC composed of both established and emerging launch providers (including those that have applied for but not yet received licenses) to develop Part 450 amendment recommendations. This inclusion of pre-licensees is deliberate—it gives emerging companies like Relativity Space, Stoke Space, and others a formal voice.

Digital Licensing System (Sec. 3): Within 60 days, DOT must develop a digital licensing, permitting, and approval system with a publicly accessible dashboard showing application status, timelines, and interagency review routing. The bill allocates up to \$5 million from existing FAA Commercial Space R&D funds. This is the “shot clock” transparency mechanism—making processing times visible and accountable.

Licensing Team Leads (Sec. 2(d)): Requires the Secretary to assign a dedicated licensing team lead to each applicant to assist in streamlining the review process. Also mandates that the Secretary “accept a reasonable safety rationale proposed by an applicant,” including new approaches—reversing the perceived practice of FAA reviewers defaulting to their own preferred methodologies.

Direct Hire Authority (Sec. 5): Authorizes DOT to use direct-hire (non-competitive) authorities for positions related to space launch/reentry licensing. This addresses the critical staffing

bottleneck—FAA AST’s May 2025 organizational chart showed acting officials in virtually all senior positions.

Commercial Space Transportation Administration (Sec. 6): Establishes a new administration within DOT, headed by an Administrator appointed by the President with Senate confirmation. This is the most structurally significant provision—it elevates AST from an FAA office to a standalone DOT administration (similar to NHTSA or FMCSA), with its own Presidentially-appointed leader. The Administrator would exercise all authorities previously held by the FAA Associate Administrator for Commercial Space Transportation.

3.3 Regulatory Power Shifts

Winners: The commercial space industry gains transparency (digital dashboard), voice (expanded ARC), and a dedicated institutional champion (Presidentially-appointed Administrator). Emerging launch companies gain formal representation in the rulemaking process. The Secretary of Transportation gains direct authority over commercial space without FAA mediation.

Losers: The FAA loses organizational control over commercial space—AST would no longer report through FAA’s chain of command. This is a significant bureaucratic diminishment. FAA’s Air Traffic Organization (ATO), which coordinates airspace closures for launches, would need to develop new inter-administration coordination protocols with the separated entity.

3.4 Industry Friction Points

Part 450 “performance-based” vs. “prescriptive” tension: Part 450’s performance-based approach was industry’s own recommendation (70% of the ARC’s inputs were incorporated into the rule). But performance-based regulation requires more analyst judgment, which means outcomes vary by reviewer. The LAUNCH Act’s requirement to “accept a reasonable safety rationale proposed by an applicant” shifts the burden of proof in a way that safety advocates may resist.

NEPA and environmental review: The bill does not directly address NEPA exemptions for launch licensing, but it exists in the context of Executive Order 14335 (August 2025), which directed the Secretary of Transportation to “eliminate or expedite” environmental reviews and establish categorical exclusions under NEPA for certain launch activities. The LAUNCH Act’s structural reforms are designed to operate alongside these executive actions.

March 10, 2026 deadline: All legacy licenses expire by this date, forcing every operator to transition to Part 450. This creates a near-term compliance crunch that gives the LAUNCH Act urgency—if Part 450 is broken, the entire industry is now operating under it with no alternative.

User fees: The Senate has considered proposals to allow FAA to collect user fees for space launch/reentry licensing. The LAUNCH Act does not include user fees, but the fee question looms as the industry’s growth outpaces AST’s budget (requested at \$42.179M for FY2026 while processing 200+ operations).

3.5 Geopolitical Context

The LAUNCH Act is driven by the concern that FAA licensing delays are costing the U.S. competitive advantage. SpaceX conducted the most licensed launches (494 total as of June 2025), but the FAA’s inability to scale its review capacity threatens to constrain launch cadence growth. China’s Long March rocket family is increasing cadence, and international competitors (including European and Indian launch providers) are improving. If U.S. companies cannot get licenses efficiently, they may face pressure to launch from foreign jurisdictions—undermining U.S. launch revenue and technology control.

3.6 Search-Worthy Rabbit Holes

Part 450 (14 CFR Part 450): The consolidated, performance-based licensing regulation that replaced legacy Parts 415/417/431/435—the central regulatory artifact this bill targets. Section 450.33 (Incremental Review): The mechanism allowing phased application submissions that has, in practice, created multi-round review cycles. COMSTAC (Commercial Space Transportation Advisory Committee): The FAA's standing industry advisory committee that has been a venue for Part 450 complaints. SpARC (Space Aerospace Rulemaking Committee): Convened by Secretary Buttigieg in November 2024 to recommend Part 450 amendments; the LAUNCH Act mandates continuation of this body. Maximum Probable Loss (MPL): The financial responsibility calculation methodology used to determine insurance requirements for licensees—a separate but related friction point. 51 U.S.C. §50905: The statutory provision governing licensing processes, timelines, and obligations that the LAUNCH Act amends. Executive Order 14335 (August 13, 2025): The Trump administration EO directing Part 450 reform, NEPA streamlining, and spaceport infrastructure acceleration—operates in parallel with the LAUNCH Act's legislative reforms.

4. The New Space Age Act (H.R. 10320)

4.1 Core Mandate and The Problem

The New Space Age Act, introduced by Rep. Kevin Kiley (R-CA) in December 2024, targets the institutional architecture of commercial space oversight. Its core mandate is to remove the Office of Commercial Space Transportation (AST) from the FAA and establish it as a standalone entity—the Commercial Space Transportation Administration—reporting directly to the Secretary of Transportation.

The Problem It's Solving: AST currently operates as an office within the FAA, an agency whose primary mission is aviation safety. The commercial space industry has long argued that this organizational placement creates a structural misalignment: FAA leadership naturally prioritizes aviation (a \$1.7 trillion industry with 45,000+ daily flights) over commercial space (a smaller but faster-growing industry). AST competes for resources, attention, and senior leadership bandwidth within an organization that does not view space as its core mission. The result, industry argues, is chronic understaffing, leadership vacancies (FAA AST's May 2025 org chart showed acting officials in virtually all senior positions), and a regulatory culture shaped by aviation's risk framework rather than space's unique operational profile.

Streamlining vs. Designating: This is fundamentally a “restructuring” action. It does not change regulations or create new mandates—it moves the organizational reporting line. The theory of change is that a Presidentially-appointed Administrator with direct access to the Secretary of Transportation will have the bureaucratic weight to set priorities, attract talent, and engage Congress independently, rather than filtering everything through the FAA Administrator.

4.2 Regulatory Power Shifts

The FAA loses: Organizational control over commercial space. The FAA Administrator would no longer have authority over AST's budget, staffing, or policy direction. This is politically significant because the FAA has, in some industry accounts, used AST's budget as a variable in broader FAA resource allocation decisions.

The Secretary of Transportation gains: Direct oversight of both commercial aviation (through FAA) and commercial space (through the new Administration). This creates a peer dynamic between the two modes of transportation at the modal administration level.

The new Administrator gains: Senate-confirmed status, independent budget authority, and direct report to the Secretary. This is the same institutional standing as the heads of NHTSA, FMCSA, FHWA, and other DOT modal administrations.

4.3 Relationship to the LAUNCH Act

The New Space Age Act and the LAUNCH Act both propose creating a Commercial Space Transportation Administration. The LAUNCH Act is more operationally detailed (digital licensing, Part 450 reform, ARC mandate, direct-hire authority), while the New Space Age Act is more narrowly focused on the organizational restructuring. In practice, they are complementary: the New Space Age Act provides the institutional change, and the LAUNCH Act provides the operational reforms that the new institution would implement. If both were enacted, the combined effect would be: a new Presidentially-appointed administrator, heading a standalone DOT administration,

implementing a reformed Part 450 with a digital licensing system and expanded industry rulemaking participation.

4.4 Industry Friction Points

Transition disruption: Organizational restructuring always creates temporary confusion—new reporting lines, new budget processes, potential staff attrition during transition. At a moment when AST is already short-staffed and struggling with Part 450 transition, adding institutional upheaval could make things worse before they get better.

Airspace coordination: The most operationally consequential friction point. Launch operations require closure of airspace and sea zones, coordinated through FAA's Air Traffic Organization. If AST is no longer within the FAA, the coordination mechanism for airspace closures becomes an inter-administration negotiation rather than an intra-agency process. This must be carefully designed to avoid adding new delays.

Political viability: Moving AST out of the FAA requires overcoming FAA institutional resistance and the transportation committees' traditional deference to FAA organizational preferences. The FAA Reauthorization Act of 2024 (P.L. 118-63) did not include this restructuring, suggesting Congress was not ready to act on it in the prior session.

4.5 Geopolitical Context

This bill is motivated by the same competitive urgency as the LAUNCH Act: if the U.S. regulatory apparatus cannot keep pace with commercial space growth, American companies will be disadvantaged relative to international competitors. China's commercial space sector is growing rapidly with streamlined government support. The bill's proponents argue that elevating commercial space to its own DOT administration signals seriousness and permanence in a way that an FAA sub-office cannot.

4.6 Search-Worthy Rabbit Holes

FAA AST (Office of Commercial Space Transportation): The current office that would be restructured—understand its history, budget (~\$42M request for FY2026), and staffing challenges. FAA Reauthorization Act of 2024 (P.L. 118-63): The most recent FAA reauthorization, which extended the human spaceflight safety "learning period" to January 1, 2028 but did not restructure AST. DOT Modal Administrations: Precedent entities like NHTSA, FMCSA, FHWA, and FRA—understand how their institutional structure compares to what's proposed for commercial space. Commercial Spaceflight Federation: The industry association most actively advocating for AST restructuring. SpaceX Starship licensing: The highest-profile example of Part 450 licensing complexity; SpaceX's Starship program at Boca Chica has been the most visible case of licensing timeline concerns. Sierra Space Dream Chaser: A commercial space plane that would use the new administration for reentry licensing. Air Traffic Organization (ATO): The FAA entity responsible for airspace management that must coordinate with any launch/reentry activity.

5. The Missing Piece: Mission Authorization and Novel Activities

None of the three bills directly addresses the “mission authorization” gap—the regulatory vacuum for commercial space activities that don’t fit neatly under existing FAA (launch/reentry), FCC (spectrum), or NOAA (remote sensing) authorities. Activities like on-orbit servicing, in-space manufacturing, active debris removal, cislunar operations, and space resource extraction currently have no clear authorization framework.

This gap is being addressed through executive action rather than legislation. Executive Order 14335 (August 13, 2025) directed the Department of Commerce’s Office of Space Commerce to develop a “space commerce certification” process for “novel space activities.” As of December 2025, OSC has published a draft concept entailing a single opt-in process where operators make “light-touch commitments” to protect national security, international obligations, and third-party safety. The EO also elevated OSC from within NOAA to report directly to the Secretary of Commerce—mirroring the institutional elevation that the New Space Age Act proposes for AST within DOT.

The interaction between these three bills and the mission authorization executive action creates a complex regulatory landscape. An Arizona company developing, say, an on-orbit servicing capability would potentially need: a launch license from the new Commercial Space Transportation Administration (per the LAUNCH Act/New Space Age Act), a mission authorization from the Office of Space Commerce (per EO 14335), protection under the critical infrastructure framework (per the Space Infrastructure Act), and FCC spectrum licensing. The legislative triad plus executive action begin to sketch the outlines of a comprehensive U.S. space regulatory framework—but no single enactment completes the picture.

6. Cross-Cutting Issue: Orbital Debris

All three bills operate in a policy environment where orbital debris is an accelerating concern. The Space Infrastructure Act implicates debris as a threat to critical infrastructure. The LAUNCH Act's Part 450 reform involves debris-related requirements (the FAA has proposed rules on "Mitigation Methods for Launch Vehicle Upper Stages on the Creation of Orbital Debris"). The New Space Age Act's institutional restructuring would determine which entity sets debris mitigation policy for commercial operators.

The FCC adopted a 5-year post-mission deorbit rule for satellites in September 2022, and NASA updated its orbital debris mitigation standard practices in 2024. But there is no unified federal debris governance framework. The Office of Space Commerce's TraCSS system is intended to provide collision avoidance data, but its funding remains contested (the FY2026 budget proposed sharp reductions, prompting an industry coalition response). Debris governance is the issue most likely to generate new legislation in the 119th or 120th Congress, and any company positioning for SDA, Artemis, or commercial LEO destination contracts should monitor this closely.

7. Geopolitical Context: The China-Artemis Timeline

The strategic backdrop for all three bills is the intensifying U.S.-China space competition. China has publicly stated its intention to land astronauts on the Moon by 2030 and to establish a permanent lunar research station. The U.S. Artemis program, while still the world's most ambitious crewed exploration program, has faced repeated delays. The Golden Dome missile defense initiative—funded at approximately \$23 billion through reconciliation—is explicitly designed to counter Chinese and Russian hypersonic and ballistic missile threats using space-based sensors and potentially interceptors.

In this context, each bill serves a strategic function. The Space Infrastructure Act hardens the civilian space infrastructure that both the commercial economy and the military depend on. The LAUNCH Act ensures that the licensing bottleneck does not constrain the launch cadence needed to deploy proliferated constellations (SDA PWSA, Golden Dome sensors, commercial broadband). The New Space Age Act elevates the institutional stature of commercial space regulation to match the sector's national security importance. Together, they represent Congress's attempt to ensure that regulatory frameworks do not become the weakest link in America's space competitiveness.

The Artemis timeline is particularly relevant because it depends on commercial partners (SpaceX for the Human Landing System, Blue Origin for the Artemis V lander, Axiom Space for spacesuits) who all operate under the licensing regime these bills seek to reform. A delay in licensing is a delay in Artemis—and a delay in Artemis is a delay in the U.S. reaching the Moon before China does.

8. Strategic Outlook: The Legislative Triad

8.1 How the Three Bills Work Together

These three bills are not competing alternatives—they are complementary components of a comprehensive federal space policy modernization. The Space Infrastructure Act provides the defensive layer (protecting space systems from threats). The LAUNCH Act provides the operational layer (ensuring licenses are processed efficiently and transparently). The New Space Age Act provides the institutional layer (giving commercial space a dedicated, elevated home in the executive branch). Together with Executive Order 14335’s mission authorization framework, they sketch the architecture of a modernized U.S. space regulatory state.

8.2 Probability Assessment

Bill	Passage Probability (119th Congress)	Rationale
Space Infrastructure Act (H.R. 1154)	LOW-MEDIUM (20–35%)	Bipartisan sponsors; aligns with Cyberspace Solarium Commission recommendations; but faces opposition from those who see it as redundant with existing cross-sector frameworks. May be included as a provision in a broader cyber or defense bill rather than passing standalone.
LAUNCH Act (H.R. 5602)	MEDIUM-HIGH (40–55%)	Strong industry support; bipartisan (Babin/Lofgren); aligns with Trump administration EO 14335 priorities; addresses widely acknowledged Part 450 problems. Most likely of the three to advance, potentially as part of NASA authorization or FAA reauthorization.
New Space Age Act (H.R. 10320)	LOW (10–20%)	Expired in 118th Congress; requires reintroduction. Institutional restructuring faces bureaucratic resistance. However, the LAUNCH Act includes a similar provision (Sec. 6), so the concept may survive even if the standalone bill does not.

8.3 What This Means for Arizona

For Arizona space stakeholders specifically, these bills have direct implications. The Space Infrastructure Act would make Northrop Grumman’s Gilbert satellite manufacturing facility, Raytheon’s Tucson space factory, Honeywell Aerospace’s avionics production, and Rocket Lab’s Geost/OSI operations eligible for DHS critical infrastructure protection grants and threat-sharing—relevant as these facilities produce hardware for SDA and missile defense programs that are high-value targets. The LAUNCH Act directly affects the FAA licensing timelines for the Yuma spaceport (launch site license) and Sierra Vista spaceport (reentry site license), both of which are currently in pre-application consultation with FAA AST. The digital licensing system and shot clock transparency would make Arizona’s spaceport licensing progress publicly trackable. The

New Space Age Act's institutional elevation would give Arizona companies a more visible and accessible federal counterpart for commercial space regulatory engagement.

8.4 Recommendations for Stakeholders

For industry: Engage with the LAUNCH Act's ARC requirement now. Companies that participate in rulemaking committees shape the rules they will operate under. For Arizona firms, this means Northrop Grumman, Honeywell, and Rocket Lab should have representatives on the Space ARC, and emerging firms like BlackStar Orbital should take advantage of the provision allowing pre-licensees to participate.

For state economic councils: The Space Infrastructure Act's grant eligibility provision is directly actionable. If space becomes the 17th sector, Arizona should immediately apply for DHS critical infrastructure protection grants to support the cybersecurity posture of its space manufacturing facilities. The Arizona Space Commission should include critical infrastructure designation as a strategic objective in its biennial plan.

For consultants and lobbyists: The three highest-value advisory niches created by this legislative triad are: (1) CISA critical infrastructure compliance advisory for space companies, (2) Part 450 licensing reform consultation for operators navigating the transition, and (3) mission authorization strategy for companies pursuing novel space activities under the Commerce Department's emerging framework. Each represents a durable, multi-year revenue stream.

END OF REPORT

Sources: Congress.gov bill text and CRS reports; FAA Part 450 regulatory documents; Heritage Foundation commentary; Executive Order 14335; Office of Space Commerce stakeholder materials; White House budget documents; GovTrack legislative tracking